

HEADNOTE

“1. If a counterclaim for revocation is successful, the patent in suit is declared revoked with retroactive effect. As a result, even a non-exclusive licensee loses its preferred position vis-à-vis non-licensees. It may therefore intervene in the legal proceedings on the claimant's side and attempt to prevent such a revocation.

2. If a Local Division has decided to hear both the infringement action and the counterclaim for revocation, it decides on the basis of a uniform interpretation of both the infringement issue and the validity of the patent. In such a constellation, the licensee may not only intervene in the counterclaim for revocation in isolation, but may intervene in the entire legal proceedings.”

COURT
Local Division in Düsseldorf

PROCEEDINGS
Infringement action

PATENT
EP 3 926 698 B1

Light emitting diode

KEYWORDS

Intervention

Admissibility of intervention

Infringement action

Invalidity counterclaim

Legal interest

Isolated joinder

Licensee

Non-exclusive licence

Non-exclusive licensee

Retroactive effect

SUMMARY

The Local Division in Düsseldorf ruled on an infringement action. The patent at issue relates to light emitting diode technology. According to the headnotes of the decision, if a counterclaim for revocation succeeds, the patent loses effect retroactively, which means even non-exclusive licensees may lose their competitive advantage and can therefore intervene in the proceedings to help prevent such revocation. Where a Local Division hears both an infringement action and a revocation counterclaim together, it applies a uniform interpretation of both issues, which permits licensees to intervene in the entire case rather than only in the revocation portion.